

Beyond Property Management, Inc.

1220 N. Coast Hwy. 101 Suite #120 • Encinitas, CA 92024
(858) 222-4663



1. LEASE LISTING AGREEMENT

1.1 EXCLUSIVE RIGHT TO LEASE:

<<Owner Name(s)>> hereby employs and grants Beyond Property Management, Inc. ("Broker") beginning (date) <<Management Start Date>> and ending at 11:59 P.M. on (date) <<Agreement Termination Date>> ("Listing Period") the exclusive and irrevocable right to lease or rent the real property in California, described as <<Property Address>> ("Premises").

1.2 LISTING TERMS:

A. RENT AMOUNT: As to Owner Questionnaire.

B. SECURITY DEPOSIT: As to Owner Questionnaire.

C. TYPE OF TENANCY: As to Owner Questionnaire.

D. ITEMS INCLUDED IN LEASE/RENTAL: All fixtures and fittings attached to the Premises and as to Owner Questionnaire

E. ADDITIONAL TERMS: As to Owner Questionnaire

F. RESERVES: Maintain a reserve in Property Manager's trust account of half of the first full month's rent; this is per unit. Reserve must be paid in full at time of this fully executed agreement. Once property is rented and once tenant moves in, this reserve can be used to pay for BPM's compensation. However, if Management Agreement be terminated, any unused portion of this reserve will be refunded to Property Owner.

1.3 COMPENSATION:

Notice: The amount or rate of real estate commissions is not fixed by law. They are set by each Broker individually and may be negotiable between Owner and Broker (real estate commissions include all compensation and fees to Broker).

A. Owner agrees to pay to Broker as compensation for services, irrespective of agency relationship(s), as specified below:

(1) 1/2 of the first month's full rent is due at time of tenant placement.

(2) Or if, without Broker's prior written consent, the Premises are withdrawn from lease/rental, are leased, rented, or otherwise transferred, or made unmarketable by a voluntary act of Owner during the Listing Period, or any extension.

B. If commencement of the lease or rental is prevented by a party to the transaction other than Owner, then compensation which otherwise would have been earned under paragraph 1.3.A.1. shall be payable only if and when Owner collects damages by suit, arbitration, settlement or otherwise, and then in an amount equal to the lesser of one-half of the damages recovered or the above compensation, after first deducting title and escrow expenses and the expenses of collection, if any.

C. Broker may retain compensation due from any Tenant payments collected by Broker.

D. (1) Owner warrants that Owner has no obligation to pay compensation to any other broker regarding the lease or rental of Premises.

(2) If Premises are leased or rented to anyone listed in during the time Owner is obligated to compensate another broker:

(i) Broker is not entitled to compensation under this Agreement; and **(ii)** Broker is not obligated to represent Owner with respect to such transaction.

1.4 TENANT PAYMENTS:

A. Broker is authorized to accept and hold from a prospective Tenant, a deposit to be held uncashed. Upon execution of a fixed term or month-to-month lease, payments received from Tenant shall be given to Owner.

B. If Landlord permits Tenant to pay rent by direct deposit such as wire or electronic transfer or other online method, Landlord should discuss with a Landlord-Tenant attorney the implications of doing so in the event Tenant defaults and an eviction becomes necessary.

1.5 SECURITY AND INSURANCE:

Broker is not responsible for loss of or damage to personal or real property, or person, whether attributable to use of a key safe/lockbox, a showing of the Premises, or otherwise. Third parties, including, but not limited to, inspectors, brokers and prospective tenants, may have access to, and take videos and photographs of, the interior of the Premises. Owner agrees: (i) to take reasonable precautions to safeguard and protect valuables that might be accessible during showings of the Premises; and (ii) to obtain insurance to protect against these risks. Broker does not maintain insurance to protect Owner.

1.6 OWNERSHIP, TITLE AND AUTHORITY:

Owner warrants that: (i) Owner is the legal owner of the Premises; (ii) no other persons or entities have title to the Premises; and (iii) Owner has the authority to both execute this Agreement and lease or rent the Premises.

1.7 LEAD-BASED PAINT:

A. LEAD BASED PAINT: Landlord to acknowledge any lead based paint and/or remediation on the Jotform Owner Questionnaire.

B. MOLD: Landlord to acknowledge any past/current mold and/or remediation on the Jotform Owner Questionnaire.

C. ASBESTOS: Landlord to acknowledge any past/current asbestos and/or remediation on the Jotform Owner Questionnaire.

D. PEST CONTROL: Landlord to acknowledge any past/current pest issues and/or remediation on the Jotform Owner Questionnaire.

E. METH CONTAMINATION: Landlord to acknowledge any past/current meth labs and/or remediation on the Jotform Owner Questionnaire.

F. BED BUG DISCLOSURE: Owner acknowledges that beginning July 1, 2017, for new tenants and by January 1, 2018, all tenants must be provided a notice regarding bed bugs. Owner further acknowledges that it is unlawful to show, rent, or lease a property if there is a known current bed bug infestation. Landlord to acknowledge any past/current bed bug infestations and/or remediation on the Jotform Owner Questionnaire.

G. CARBON MONOXIDE DETECTORS: If the Premises has a fossil fuel burning heater, appliance, or an attached garage, Owner will install operable carbon monoxide detector devices in accordance with legal requirements.

H. SMOKE ALARMS: Owner will install smoke alarm(s) in each bedroom, in the hallway outside of each bedroom and on each floor whether or not a bedroom is located on the floor in compliance with legal requirements.

I. WATER CONSERVING PLUMBING FIXTURES: If the Premises was built prior to January 1, 1994, The Owner to disclose on Jotform Questionnaire if Owner installed water conserving plumbing fixtures (toilets, shower heads, interior faucets, urinals) as per Civil Code section 1101.1 et seq. effective as of 1/1/2017 for single family residential properties and 1/1/2019 for multifamily residential properties.

J. WATER HEATERS: Owner will install, if not currently in compliance, a Water heater which is braced, anchored or strapped to resist falling or horizontal displacement due to earthquake motion.

1.8 OWNER REPRESENTATIONS: OWNER

Owner represents that, unless otherwise specified in writing, Owner is unaware of: (i) any recorded Notice of Default affecting the Premises; (ii) any delinquent amounts due under any loan secured by, or other obligation affecting, the Premises; (iii) any bankruptcy, insolvency or similar proceeding affecting the Premises; (iv) any litigation, arbitration, administrative action, government investigation, or other pending or threatened action that does or may affect the Premises or Owner's ability to lease, rent or transfer it; and (v) any current, pending or proposed special assessments affecting the Premises. Owner shall promptly notify Broker in writing if Owner becomes aware of any of these items during the Listing Period or any extension thereof.

1.9 BROKER'S AND OWNER'S DUTIES:

Broker agrees to exercise reasonable effort and due diligence to achieve the purposes of this Agreement. Unless Owner gives Broker written instructions to the contrary, Broker is authorized to advertise and market the Premises in any medium, selected by Broker including MLS and the Internet and, to the extent permitted by these media, including MLS, control the dissemination of the information submitted to any medium. Owner agrees to consider offers presented by Broker and to act in good faith to accomplish the lease or rental of the Premises by, among other things, making the Premises available for showing at reasonable times and referring to Broker all inquiries of any party interested in the Premises subject to 3G. Owner is responsible for determining at what price and terms to list and lease or rent the Premises. Owner further agrees to indemnify, defend and hold Broker harmless from all claims, disputes, litigation, judgments, attorney fees and costs arising from any incorrect or incomplete information supplied by Owner, or from any material facts that Owner knows but fails to disclose including dangerous or hidden conditions on the Premises.

Property Manager may perform any of Property Manager's duties, and obtain necessary products and services, through affiliated companies or organizations in which Property Manager may own an interest. Property Manager may receive fees, commissions and/or profits from these affiliated companies or organizations. Property Management Company has an ownership interest in the following companies: Asset

1.10 AGENCY RELATIONSHIPS:

A. Owner Representation: Broker shall represent Owner in any resulting transaction,

B. Possible Dual Agency With Tenant: Depending upon the circumstances, it may be necessary or appropriate for Broker to act as an agent for both Owner and Tenant. Broker shall, as soon as practicable, disclose to Owner any election to act as a dual agent representing both Owner and Tenant. If a Tenant is procured directly by Broker or an associate licensee in Broker's firm, Owner hereby consents to Broker acting as a dual agent for Owner and such Tenant.

D. Other Owners: Owner understands that Broker may have or obtain listings on other properties and that potential tenants may consider, make offers on, or lease or rent through Broker, premises the same as or similar to Owner's Premises. Owner consents to Broker's representation of owners and tenants of other properties before, during and after the end of this Agreement.

E. Confirmation: If the Premises includes residential property with one to four dwelling units, and the agreed-upon lease is for a tenancy in excess of one year, Broker shall confirm the agency relationship described above, or as modified, in writing, prior to or coincident with Owner's and Tenant's execution of such lease.

1.11 EQUAL HOUSING OPPORTUNITY

The Premises is offered in compliance with federal, state and local anti-discrimination laws.

1.12 ATTORNEY'S FEES

In any action, proceeding or arbitration between Owner and Broker to enforce the compensation provisions of this Agreement, the prevailing Owner or Broker shall be entitled to reasonable attorney's fees and costs not exceeding \$500 from the non-prevailing Owner or Broker.

1.13 SUCCESSORS AND ASSIGNS

This Agreement shall be binding upon Owner and Owner's successors and assigns.

1.14 DISPUTE RESOLUTION

A. MEDIATION: Owner and Broker agree to mediate any dispute or claim arising between them regarding the obligation to pay compensation under this Agreement, before resorting to arbitration or court action. Mediation fees, if any, shall be divided equally among the parties involved. If, for any dispute or claim to which this paragraph applies, any party (i) commences an action without first attempting to resolve the matter through mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney fees, even if they would be available to that party in any such action.

B. ADDITIONAL MEDIATION TERMS: The following matters shall be excluded from mediation: (i) a judicial or non-judicial foreclosure or other action or proceeding to enforce a deed of trust, mortgage or installment land sale contract as defined in Civil Code §2985; (ii) an unlawful detainer action; (iii) the filing or enforcement of a mechanic's lien; and (iv) any matter that is within the jurisdiction of a probate, small claims or bankruptcy court. The filing of a court action to enable the recording of a notice of pending action, for order of attachment, receivership, injunction, or other provisional remedies, shall not constitute a waiver or violation of the mediation provisions.

1.15 TIME OF ESSENCE; ENTIRE CONTRACT; CHANGES

Time is of the essence. All understandings between the parties are incorporated in this Agreement. Its terms are intended by the parties as a final, complete and exclusive expression of their Agreement with respect to its subject matter, and may not be contradicted by evidence of any prior agreement or contemporaneous oral agreement. If any provision of this Agreement is held to be ineffective or invalid, the remaining provisions will nevertheless be given full force and effect. Neither this Agreement nor any provision in it may be extended, amended, modified, altered or changed except in writing. This Agreement and any supplement, addendum or modification, including any copy, may be signed in two or more counterparts, all of which shall constitute one and the same writing.

REPRESENTATIVE CAPACITY: This Lease Listing Agreement is being signed for Owner by an individual acting in a Representative Capacity as specified in the attached Representative Capacity Signature Disclosure. Wherever the signature or initials of the representative identified in the RCSD appear on this Agreement or any related documents, it shall be deemed to be in a representative capacity for the entity described and not in an individual capacity, unless otherwise indicated. Owner (i) represents that the entity for which the individual is signing already exists and (ii) shall Deliver to Broker, within 3 Days After Execution of this Agreement, evidence of authority to act (such as but not limited to: applicable trust document, or portion thereof, letters testamentary, court order, power of attorney, corporate resolution, or formation documents of the business entity).

1.16 SERVICES: ADVERTISING, COSTS, FAIR HOUSING

Beyond Property Management (BPM) agrees to:

- Beyond Property Management will pay up to \$100 for professional photos. Any additional costs will be at the expense of the owner.
- Advertise the property on all top real estate websites such as, but not limited to, Zillow, HotPads, Trulia.
- Show vacant and ready to move-in units only.
- Thoroughly screen applicants.
- Provide fully executed lease and applicable addenda's.

CANCELLATION IF APPLICABLE:

If Owner is not satisfied with Beyond Property Management's service, this agreement may be canceled with 7 days written notice. Beyond Property Management reserves the right to cancel this agreement with 7 days written notice as well.

PAYMENT FOR SERVICES:

Due Date: Per unit: No fee is due until the day the lease is signed with the new tenant. If full payment is not received within 30 calendar days, a 10% monthly late fee will accrue.

Cancellation: If owner cancels this agreement prior to placing the tenant, than \$500 is due to BPM as well as the cost of the professional photos, Zillow advertising costs, premium advertising costs, and/or pending resident application fees; this is per unit. This covers Broker's administrative, advertising, showing costs, etc.

FAIR HOUSING COMPLIANCE: EQUAL ACCESS TO HOUSING FOR ALL

All housing in California is available to all persons. Discrimination as noted below is prohibited by law. Resources are available for those who have experienced unequal treatment under the law.

FEDERAL AND STATE LAWS PROHIBIT DISCRIMINATION AGAINST IDENTIFIED PROTECTED CLASSES:

A. FEDERAL FAIR HOUSING ACT ("FHA") Title VIII of the Civil Rights Act; 42 U.S.C. §§ 3601-3619; Prohibits discrimination in sales, rental or financing of residential housing against persons in protected classes;

B. CALIFORNIA FAIR EMPLOYMENT AND HOUSING ACT ("FEHA") California Government Code ("GC") §§12900-12996, 12955; 2 California Code of Regulations ("CCR") §§12005-12271; Prohibits discrimination in sales, rental or financing of housing opportunity against persons in protected classes by providers of housing accommodation and financial assistance services as related to housing;

C. CALIFORNIA UNRUH CIVIL RIGHTS ACT ("Unruh") California Civil Code ("CC") §51; Prohibits business establishments from discriminating against, and requires full and equal accommodation, advantages, facilities, privileges, and services to persons in protected classes;

D. AMERICANS WITH DISABILITIES ACT ("ADA") 42 U.S.C. §§12181-12189; Title III of the ADA prohibits discrimination based on disability in public accommodations; and

E. OTHER FAIR HOUSING LAWS: Section 504 of Rehabilitation Act of 1973 29 U.S.C. §794; Ralph Civil Rights Act CC §51.7.; California Disabled Persons Act; CC §§54-55.32; any local city or county fair housing ordinances, as applicable.

POTENTIAL LEGAL REMEDIES FOR UNLAWFUL DISCRIMINATION:

Violations of fair housing laws may result in monetary civil fines, injunctive relief, compensatory and/or punitive damages, and attorney fees and costs.

PROTECTED CLASSES/CHARACTERISTICS:

Whether specified in Federal or State law or both, discrimination against persons if based on that person's belonging to, association with, or perceived membership to, any of the following classes or categories is prohibited.

Race	Color	Ancestry	National Origin	Religion
Sex	Sexual Orientation	Gender	Gender Identity	Gender Expression
Marital Status	Familial Status (family with a child or children under 18)	Source of Income (e.g., Section 8 Voucher)	Disability (Mental & Physical)	Medical Condition
Citizenship	Primary Language	Immigration Status	Military/Veteran Status	Age

Criminal History (non-relevant convictions)	Any arbitrary characteristic
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THE CALIFORNIA DEPARTMENT OF REAL ESTATE REQUIRES TRAINING AND SUPERVISION TO PREVENT HOUSING DISCRIMINATION BY REAL ESTATE LICENSEES:

A. California Business & Professions Code (“B&PC”) §10170.5(a)(4) requires 3 hours of training on fair housing for DRE license renewal; Real Estate Regulation §2725(f) requires brokers who oversee salespersons to be familiar with the requirements of federal and state laws relating to the prohibition of discrimination.

B. Violation of DRE regulations or real estate laws against housing discrimination by a real estate licensee may result in the loss or suspension of the licensee's real estate license. B&PC §10177(l)(1); 10 CCR §2780

REALTOR® ORGANIZATIONS PROHIBIT DISCRIMINATION:

NAR Code of Ethics Article 10 prohibits discrimination in employment practices or in rendering real estate license services against any person because of race, color, religion, sex, handicap, familial status, national origin, sexual orientation, or gender identity by REALTORS®.

WHO IS REQUIRED TO COMPLY WITH FAIR HOUSING LAWS?

Below is a non-exclusive list of providers of housing accommodations or financial assistance services as related to housing who are most likely to be encountered in a housing transaction and who must comply with fair housing laws.

- Sellers • Landlords • Sublessors • Real estate licensees • Real estate brokerage firms • Property managers • Mobilehome parks
- Homeowners Associations (“HOAs”); • Banks and Mortgage lenders • Insurance companies • Government housing services

EXAMPLES OF CONDUCT THAT MAY NOT BE MOTIVATED BY DISCRIMINATORY INTENT BUT COULD HAVE A DISCRIMINATORY EFFECT:

A. Prior to acceptance of an offer, asking for or offering buyer personal information or letters from the buyer, especially with photos. Those types of documents may inadvertently reveal, or be perceived as revealing, protected status information thereby increasing the risk of (i) actual or unconscious bias, and (ii) potential legal claims against sellers and others by prospective buyers whose offers were rejected.

B. Refusing to rent (i) an upper level unit to an elderly tenant out of concern for the tenant's ability to navigate stairs or (ii) a house with a pool to a person with young children out of concern for the children's safety.

EXAMPLES OF UNLAWFUL OR IMPROPER CONDUCT BASED ON A PROTECTED CLASS OR CHARACTERISTIC:

A. Refusing to negotiate for a sale, rental or financing or otherwise make a housing opportunity unavailable; failing to present offers due to a person's protected status;

B. Refusing or failing to show, rent, sell or finance housing; “channeling” or “steering” a prospective buyer or tenant to or away from a particular area due to that person's protected status or because of the racial, religious or ethnic composition of the neighborhood;

C. “Blockbusting” or causing “panic selling” by inducing a listing, sale or rental based on the grounds of loss of value of property, increase in crime, or decline in school quality due to the entry or prospective entry of people in protected categories into the neighborhood;

D. Making any statement or advertisement that indicates any preference, limitation, or discrimination;

E. Inquiring about protected characteristics (such as asking tenant applicants if they are married, or prospective purchasers if they have children or are planning to start a family);

F. Using criminal history information before otherwise affirming eligibility, and without a legally sufficient justification;

G. Failing to assess financial standards based on the portion of the income responsible by a tenant who receives government subsidies (such as basing an otherwise neutral rent to income ratio on the whole rent rather than just the part of rent that is the tenant's responsibility);

H. Denying a home loan or homeowner's insurance;

I. Offering inferior terms, conditions, privileges, facilities or services;

J. Using different qualification criteria or procedures for sale or rental of housing such as income standards, application requirements, application fees, credit analyses, sale or rental approval procedures or other requirements;

K. Harassing a person;

L. Taking an adverse action based on protected characteristics;

M. Refusing to permit a reasonable modification to the premises, as requested by a person with a disability (such as refusing to allow a wheel chair bound tenant to install, at their expense, a ramp over front or rear steps, or refusing to allow a physically

disabled tenant from installing, at their own expense, grab bars in a shower or bathtub);

N. Refusing to make reasonable accommodation in policies, rules, practices, or services for a person with a disability (such as the following, if an actual or prospective tenant with a disability has a service animal or support animal):

(i) Failing to allow that person to keep the service animal or emotional support animal in rental property,

(ii) Charging that person higher rent or increased security deposit, or

(iii) Failing to show rental or sale property to that person who is accompanied by the service animal or support animal, and;

O. Retaliating for asserting rights under fair housing laws.

EXAMPLES OF POSITIVE PRACTICES:

A. Real estate licensees working with buyers or tenants should apply the same objective property selection criteria, such as location/neighborhood, property features, and price range and other considerations, to all prospects.

B. Real estate licensees should provide complete and objective information to all clients based on the client's selection criteria.

C. Real estate licensees should provide the same professional courtesy in responding to inquiries, sharing of information and offers of assistance to all clients and prospects.

D. Housing providers should not make any statement or advertisement that directly or indirectly implies preference, limitation, or discrimination regarding any protected characteristic (such as "no children" or "English-speakers only").

E. Housing providers should use a selection process relying on objective information about a prospective buyer's offer or tenant's application and not seek any information that may disclose any protected characteristics (such as using a summary document, e.g. C.A.R. Form SUM-MO, to compare multiple offers on objective terms).

FAIR HOUSING RESOURCES:

If you have questions about your obligations or rights under the Fair Housing laws, or you think you have been discriminated against, you may want to contact one or more of the sources listed below to discuss what you can do about it, and whether the resource is able to assist you.

A. Federal: https://www.hud.gov/program_offices/fair_housing_equal_opp

B. State: <https://www.dfeh.ca.gov/housing/>

C. Local: local Fair Housing Council office (non-profit, free service)

D. DRE: <https://www.dre.ca.gov/Consumers/FileComplaint.html>

E. Local Association of REALTORS®. List available at: <https://www.car.org/en/contactus/rosters/localassociationroster>.

F. Any qualified California fair housing attorney, or if applicable, landlord-tenant attorney.

LIMITED EXCEPTIONS TO FAIR HOUSING REQUIREMENTS:

No person should rely on any exception below without first seeking legal advice about whether the exception applies to their situation. Real estate licensees are not qualified to provide advice on the application of these exceptions.

A. Legally compliant senior housing is exempt from FHA, FEHA and Unruh as related to age or familial status only;

B. An owner of a single-family residence who resides at the property with one lodger may be exempt from FEHA for rental purposes, **PROVIDED no real estate licensee is involved** in the rental;

C. An owner of a single-family residence may be exempt from FHA for sale or rental purposes, PROVIDED (i) no real estate licensee is involved in the sale or rental and (ii) no discriminatory advertising is used, and (iii) the owner owns no more than three single-family residences. Other restrictions apply;

D. An owner of residential property with one to four units who resides at the property, may be exempt from FHA for rental purposes, **PROVIDED no real estate licensee is involved** in the rental; and

E. Both FHA and FEHA do not apply to roommate situations. See, Fair Housing Council v Roommate.com LLC, 666 F.3d 1216 (2019).

F. Since both the 14th Amendment of the U.S. Constitution and the Civil Rights Act of 1866 prohibit discrimination based on race; the FHA and FEHA exemptions do not extend to discrimination based on race.

COMMUNICATION:

Owner agrees that email is an acceptable form of communication between Management and Owner.

MOVE-IN, MOVE-OUT, AND TURNOVER:

Owner is responsible for tenant move-in and turning over the property to make it rent ready.

AGREEMENT VALIDITY:

If any of this Agreement is found to be void or unenforceable by any court or arbitration panel, the finding will have no effect on any other provision of this Agreement, and all other provisions will remain in full force and effect.

QUESTIONNAIRE/OWNER ON-BOARDING SHEET:

The Questionnaire must be filled out in order for this agreement to be fully executed. The Questionnaire specifies the HOA information, appliances, amenities, owner draw information, etc.

1.17 OWNER PERMISSION FOR USE OF A KEYSAFE/LOCKBOX

Owner hereby authorizes Broker to use a keysafe/lockbox. If the Property is tenant-occupied, Owner is advised that tenant permission may be required and is recommended. Owner acknowledges receipt of a copy of this document.

A keysafe/lockbox is designed to hold a key to the above Property, permitting access to the interior of the Property by Broker, other brokers and real estate licensees who are participants of the Multiple Listing Service(s) ("MLS"), authorized appraisers and inspectors, and accompanied persons interested in purchasing, leasing or renting the Property. These individuals may take videos or photographs of the Property. Broker does not have the ability to control or block the taking of and use of images by any such persons.

1. Broker, cooperating brokers and other real estate licensees, the MLS and Associations/Boards of REALTORS® are **not** insurers against injury, theft, loss, vandalism, damage or other harm whether through the use of a keysafe/lockbox or other means. Broker does not maintain insurance to protect Owner or other occupants.
2. Broker recommends that Owner and, if applicable, Tenant and other occupants of the Property maintain insurance and take any and all possible precautions and safeguards to protect themselves, other occupants and visitors, their property and belongings, including cash, jewelry, drugs, firearms, and other valuables located on the Property.

1.18 LEAD WARNING STATEMENT (LEASE OR RENTAL)

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors must disclose the presence of lead-based paint and/or lead-based paint hazards in the dwelling. Lessees must also receive federally approved pamphlet on lead poisoning prevention.

EPA'S LEAD-BASED PAINT RENOVATION, REPAIR AND PAINTING RULE: The new rule requires that contractors and maintenance professionals working in pre-1978 housing, child care facilities, and schools with lead-based paint be certified; that their employees be trained; and that they follow protective work practice standards. The rule applies to renovation, repair, or painting activities affecting more than six square feet of lead-based paint in a room or more than 20 square feet of lead-based paint on the exterior. Enforcement of the rule begins October 1, 2010. See the EPA website at www.epa.gov/lead for more information.

By initialing below, you acknowledge and agree to the terms in Section 1.

X _____
Initial Here

2. Sign and Accept

2.1 AUTHORIZED SIGNER

By signing below, Owner acknowledges that Owner has read, understands, received a copy of and agrees to the terms of this Agreement.

X

Owner

Date Signed

X

Agent/Broker

Date Signed